

फार्म नं. 1

प्रथम सूचना प्रतिवेदन (धारा 154 द. प्रक्रिया संहिता के अन्तर्गत)
FIRST INFORMATION REPORT (Under Sec. 154 Cr.P.C.)

वि.पु.स्था.सी.-II
S.P.E.C.-II

बुक नं.
Book No. **962**

क्रम सं.
Serial No. **08**

1. जिला : थाना : वर्ष : प्र.सू.प्र.क्र. दिनांक :
District PS: Year FIR No. Date
Raipur SPE, CBI, ACB 2024 RC1242024A0008 22.10.2024
2. (1) विधान : धाराएं :
Act IPC Sections 120 B r/w 420 of IPC and substantive offences thereof
(2) विधान : धाराएं :
Act PC Act, 1988 Sections 13(1)(a) r/w 13(2) of PC Act 1988 and substantive offences thereof
(3) विधान : धाराएं :
Act Sections
(4) अन्य विधान एवं धाराएं :
Other Acts & Sections
3. (क) प्रतीत अपराध : Criminal Conspiracy, Cheating, Criminal Misconduct
(a) Suspected Offence
(ख) दिन : दिनांक समय
(b) Day 2019 to 2024 Date Time
11.01.2024 and 29.05.2024
(ग) थाने पर सूचना प्राप्त होने का दिनांक
(c) Information received at PS Date
कायमी अपराध : दिनांक समय
Entry No. 8 Date 22.10.2024 Time 2000 Hrs.
4. सूचना का प्रकार : लिखित/मौखिक
Type of Information Written/Oral
Written
5. घटना का स्थान
Place of Occurrence
Dipka, Gevra Mines, SECL, Korba
(क) थाने से दिशा व दूरी :
(a) Direction & Distance from PS
200 KMs approximately North East

बीट नं. / Beat No.

3

(ख) पता: South Eastern Coalfield Ltd.
(b) Address

(ग) घटनास्थल अन्य थाना क्षेत्राधिकार में है तो थाना -
(c) In case, outside the limit of this Police Station, then
N/A

पुलिस थाना का नाम
Name of PS

जिला
District

6. अभियोगी / सूचनाकर्ता :
Complainant / Informant

Sh. Ashish Kashyap

(क) नाम
(a) Name

(ख) पिता / पति का नाम Shri Suraj Bali Kashyap
(b) Father's / Husband's Name

(ग) जन्म तिथि
(c) Date of Birth

(घ) राष्ट्रियता : Indian
(d) Nationality

(ङ) पासपोर्ट नं. जारी दिनांक जारी होने का स्थान
(e) Passport No Date of Issue Place of Issue

(च) व्यवसाय Private person
(f) Profession

(छ) पता - Sakin, Beltikri, Basahat, Ward No.13, Pandit Deen Dayal Nagar,
(g) Address Mangla, Bilaspur, Chhattisgarh.

7. ज्ञात / संदेही / अज्ञात / आरोपी का पूर्ण विवरण :

Details of known / suspected / unknown accused with full particulars

(यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)

(Attached separate sheet, if necessary)

- (1.) Sh. Khusal Jaiswal, s/o Parmatma P. Jaiswal R/o Hardi Bazar, Korba, Behind Electricity Board Office, Korba-495446, Chhattisgarh.
- (2.) Sh. Rajesh Jaiswal, S/o Uday Narayan Jaiswal, R/o Kathghora Road, In front of Gupta Printers, Dipka, Dist. Korba-495452, Chhattisgarh.
- (3.) Unknown public servants of SECL and others.

Sh. Ashish Kashyap

8. अभियोगी / सूचनाकर्ता द्वारा सूचना दिए जाने में विलंब का कारण :
Reasons for delay in reporting by the complainant / informant
No delay
9. अपहृत / सम्बद्ध सम्पत्ति का पूर्ण विवरण : (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
Particulars of properties Stolen (Attach separate sheet, if necessary)
N.A.
10. अपहृत / सम्बद्ध सम्पत्ति का कुल मूल्य :
Total value of property stolen
N.A.
11. मर्ग / अकाल मृत्यु सूचना क्रमांक :
Inquest Report / U.D. case No. if any
N.A.
12. प्रथम सूचना विवरण :- (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
First Information contents (Attach separate sheet, if required)

Separate Sheets Enclosed as Annexure "A"

3/11/11

Content

A complaint dated 12.12.2023, of Shri Ashish Kashyap was received in CBI, ACB Chhattisgarh on 11.01.2024. Another complaint dated Nil of Shri Lokesh Kumar of village Suabhodi was received in the branch on 29.05.2024.

It is alleged in the complaint of Shri Lokesh Kumar and Shri Ashish Kashyap that various private persons have entered into criminal conspiracy with the officials of SECL (officials of Various Committee responsible for determining eligible asset owner/justified claimant) and defrauded the public Exchequer of over 9 crore.

The Discreet Verification of the said complaints has disclosed that Shri Khusal Jaiswal has claimed and received compensation worth more than Rs.16034833/- (Rupees One Crore Sixty Lakh Thirty Four Thousand Eight Hundred Thirty Three) for houses constructed on Govt. land or other's land located in villages like Malgaon, Amgaon (Various phases in Amgaon) on more than 7 occasion in his name or in the name of his immediate family members.

That Shri Rajesh Jaiswal has claimed and received compensation worth more than 18365570/- (one crore eighty three lakh Sixty Five thousand five hundred seventy five) for houses constructed on Govt. land or other's land located in villages like Malgaon, Amgaon (Various phases in Amgaon) on more than 9 occasion in his name or in the name of his immediate family members.

That as per the EXTRACT OF THE APPROVED MINUTES OF THE 326TH MEETING OF THE BOARD OF DIRECTORS OF SOUTH EASTERN COALFIELDS LIMITED HELD ON MONDAY, THE 18TH JULY, 2022 AT NEW DELHI, for being eligible for compensation for homestead, the claimant must have been permanent resident of the acquired village/the acquired land or ordinarily residing in the project area on the date of publications of above notifications i.e. u/s 9 (I) of CBA Act, which means the claimant must have been residing in the project area for at least six months in a year for at least the preceding five years. (3 years in case of Landless homestead).

That Shri Khusal Jaiswal and Shri Rajesh Jaiswal have applied for compensation of Assets (Houses) on multiple occasions and while applying for compensation have given affidavit that they do not own any other house on the land

30.1.

acquired by SECL and despite this they have applied and received compensation on multiple occasions later on. Therefore, they have cheated the public Exchequer by entering into Conspiracy with other unknown persons and unknown officers of SECL.

Further, that the primary requirement for eligibility of any claim for any sort of compensation by SECL was that the said assets like Homestead, wells, trees etc. should have been constructed before publication of notification of Section 9 of CBA (A&D) Act, 1957/under Section 11 of LA Act, 1894 or both / on the date of land vested with the State / Central Government which is 2004, 2009, and 2010. There is credible information that the houses for which aforementioned suspects have received compensation were constructed much later i.e. after the said land had been vested with the State / Central Government.

The Multiple claims of compensation for homestead by Shri Khusal Jaiswal and Shri Rajesh Jaiswal as described above reveal the conspiracy among Shri Khusal Jaiswal, Shri Rajesh Jaiswal (Cousins), others and SECL officers who have not verified/checked the claim and the requirements for the eligibility of compensation for Homestead before disbursing the amount.

Hence, the above-mentioned act of omission or commission on the part of Shri Khusal Jaiswal and Shri Rajesh Jaiswal, other unknown persons and unknown SECL officials has caused wrongful loss of Rs. 34400403/- to SECL (Public Exchequer) and thus constitute a commission of offences U/s 120 B r/w 420 of IPC, and section 13 (1) (a) r/w 13 (2) of PC Act 1988 (as amended in 2018) and substantive offences thereof.

Therefore a regular case against Shri Khusal Jaiswal, Shri Rajesh Jaiswal, Unknown Public Servants of SECL and others U/s 120 B r/w 420 of IPC, and section 13 (1) (a) r/w 13 (2) of PC Act 1988 (as amended in 2018) and substantive offences thereof is being registered.

3(B) -

13. कार्यवाही जो की गई : चूँकि उपरोक्त विवरण क्रमांक 2 में उल्लिखित धारा(ओं) के अंतर्गत घटने वाले अपराध को उद्घाटित करता है

Action taken : Since the above information reveals commission of offence(s) u/s as mentioned at Item No. 2

- (1) मामला पंजीकृत किया गया एवं जांच प्रारंभ हुआ अथवा
Registered the case and took up the investigation or

Registered a Regular Case No. RC1242024A0008.

- (2) निर्देशित (जांच अधिकारी का नाम) रैंक नं. जांच हेतु लिया गया
Directed (Name of IO) Rank No. Took up for investigation

Shri Ravi Ranjan, Inspector, CBI, ACB, Chhattisgarh, Raipur.

- (3) कारण से जांच के नामंजूर अथवा
Refused investigation due to or
N/A

- (4) पुलिस थाना को स्थानांतरित किया गया जिला क्षेत्राधिकार के आधार पर
Transferred to PS District on point of jurisdiction
N/A

अभियोगी / सूचनाकर्ता को प्र.सू. पत्र पढ़ाकर / पढ़कर सुनाया गया, जिन्होंने सही-सही अभिलिखित होना स्वीकार किया। इसकी एक प्रति अभियोगी / सूचनाकर्ता को निःशुल्क प्रदान की गई।

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant/informant, free of cost.

पढ़ कर सुनाया व सही स्वीकृत होना पाया।
R.O.A.C.

14. अभियोगी / सूचनाकर्ता के हस्ताक्षर
Signature/Thumb impression
of the complainant/informant

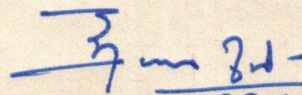
थाना अधिकारी के हस्ताक्षर
Signature of Officer in-charge
Police Station

नाम / Name

(पद) / Rank

No.

15. न्यायालय को भेजने का दिनांक एवं समय
Date and time of despatch to the court

 22.11.2024

HEAD OF BRANCH

CBI/ACB/CHHATTISGARH/RAIPUR

S. N. Jat

(प्रभारी अधिकारी के हस्ताक्षर तारीख सहित)

Signature of recording Officer with date

CBI, ACB, Chhattisgarh, Raipur